

Court No. - 3

Case :- WRIT - C No. - 21446 of 2022

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

As prayed by Ms. Rishu Mishra, learned counsel for the respondents, put up as a fresh case before the appropriate Bench on 18.08.2022 to enable her to obtain instructions.

Order Date :- 11.8.2022

SK

Court No. - 39

Case :- WRIT - C No. - 21446 of 2022

Petitioner :- Vijay Kumar Agrawal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anil Kumar Pandey

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Jyotsna Sharma,J.

The petitioner herein seeks a writ of mandamus commanding the respondent No.3 to correct the provisional bill dated 14.07.2022 of electricity consumed by the petitioner between May 2018 till July 2022. The petitioner herein is raising a dispute with regard to the computation made in the provisional bill dated 14.07.2022.

The remedy before the petitioner lies under clause 6.5 of the U.P. Electricity Supply Code' 2005. We, therefore, relegate the petitioner to approach the respondent No.3 namely the Executive Engineer, Electricity Urban Distribution Division (EUDD)-II, Baxipur, Gorakhpur by filing his objections to the provisional bill dated 14.07.2022. If such an objection is filed within a period of two weeks alongwith the copy of this order, the respondent No.3 shall be under obligation to take an expeditious decision dealing with all points of objections raised by the petitioner. A reasoned and speaking order in accordance with law shall be passed, preferably, within a period of four weeks, thereafter.

The writ petition is **disposed of**.

Order Date :- 31.8.2022

Himanshu